

Enterprise Risk Management Analytics: Quantitative Risk Assessment of TD Bank Group's Failed First Horizon Acquisition

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1. Background

On February 28, 2022, TD Bank Group announced that it will acquire First Horizon Corporation for \$13.4 billion in cash, the largest bank transaction in North American history at the time. The business strategy was obvious: grow TD's retail presence in a part of the U.S. where the bank didn't have much of a presence. The transaction was expected to expand TD's U.S. retail customer base to more than 11 million and branch count to 412 in 12 states.

It was never sold. The Philadelphia Federal Reserve on March 13, 2023, wrote to TD's lawyers asking to suspend the merger process because of unresolved anti-money laundering (AML) shortcomings in TD's compliance program. On May 4, 2023, TD and First Horizon mutually agreed to terminate the merger agreement. TD received a termination fee of US\$200 million and a US\$25 million expense reimbursement from the First Horizon, which cost TD financial loss of US\$225 million for a no-return contract.

The repercussions went far beyond the termination fee. TD Bank was the first U.S. bank ever to plead guilty to conspiracy to commit money laundering under the Bank Secrecy Act, as it did in October 2024, and penalties have been issued in the amounts of US\$3 billion by the DOJ, US\$1.7 billion by the OCC, US\$1.2 billion by the FCEN, and US\$1 billion by the Federal Reserve. At the same time, the OCC imposed an asset cap on TD's operations in the U.S. that would prevent growth of the business, and that will have no expiration. Bharat Masrani, CEO of the company, stepped down on April 1, 2025, and TD's Chief Compliance Officer left in mid-2024.

This report combines the enterprise risk assessment that has been built during ALY6130 using Indicators and Warning (I&W) analysis, Monte Carlo simulation and machine learning-based prediction for three risks identified during the First Horizon transaction. The analysis is a past assessment of and plan for TD Bank's future risk management in the U.S. market.

2. Identification of Risks

The competitive intelligence and internal environment analysis of TD Bank's First Horizon transaction resulted in the identification of three enterprise risks. The risks were chosen because they were directly driven by the AML compliance failure, they were measurable through leading indicators and they had a direct impact on TD's strategic position.

Risk	Likelihood (/9)	Impact (/9)	Score (/81)	Priority
Regulatory Approval Failure	9	9	81	CRITICAL
Market Share Loss	7	9	63	HIGH
Reputational Damage	7	9	63	HIGH

The lack of compliance with the Bank Merger Act and the Bank Secrecy Act by TD was the direct cause of the failure of the merger. The Philadelphia Federal Reserve's action at month 12.5 of the review process set the review right in the AMBER zone and deal termination occurred at 14.2 months. Risk 1 is the highest possible risk score of 81/81, as

TD's AML failures were not just a procedural shortcoming, but a systemic compliance failure that ultimately cost the organization US\$3.225 billion in direct penalties and termination costs, apart from any deal outcome.

Risk 2: Market Share Loss [Strategic / Competitive]

More importantly, the community banks in the southeastern U.S. were left without TD, as the OCC's asset cap on TD imposed in October 2024 will prevent TD from opening new branches or new business lines in the country without regulatory approval, which will stifle TD's U.S. market share growth while competitors expand naturally. Structural compression is in the U.S. retail deposit market as TD's share (currently around 2.1% of total U.S. retail deposits) has no near-term relief mechanism.

Risk 3: Reputational Damage [Reputational / Strategic]

TD Bank is the largest U.S. bank in history to enter a guilty plea in BSA/AML matters. The effects on reputation were immediate and ongoing: resignation of the CEO, the CCO's departure, a fall in the stock price in pre-market trading hours after the announcement of the fine, and on-going crisis level negative media coverage from the financial tier-1 press. The impacts of reputational damage are multiplicative - it compounds the impact of Risk 1 and Risk 2, causing investors to lose faith, preventing potential customers and adding additional scrutiny from regulators which further extends the life of the asset cap.

3. Qualitative Risk Assessment

The two analytic frameworks used in the qualitative risk assessment were provided by the course: Chapter 22-Scenario Analytics and Chapter 17-Industry Fusion Analytics. These techniques, combined, indicated if additional quantitative work was needed or not.

3.1 Scenario Analytics

Three scenarios are put forward for each risk, optimistic, base and pessimistic:

Risk 1: TD full AML remediation by end of 2025, asset cap lifted, regulatory standing restored in 24 months. Base: Asset cap remains until 2026; AML monitor oversight remains in place; no new significant enforcement actions. Pessimistic: Further regulatory findings during remediation; DOJ monitor finds additional violations; increased penalties.

Risk 2: Digital channel investment is able to replace some of the branch investment lost; deposit growth is largely flat by 2026, 1-2%. Base: U.S. deposit volume continues to fall under cap, TD sees 1.0-1.5 percentage points mixed market share loss in three years. Pessimistic: Competitor aggressive expansion and extended cap leads to net deposit outflows, U.S. retail segment becomes structurally loss making.

Risk 3: New CEO manages to reposition TD brand; negative media volume returns to baseline in 12 months. Key takeaway: Reputational recovery takes time, and high media attention at the AMBER level continues until 2025. Pessimistic: Sequel of additional regulatory results or executive changes continue to drive crisis-level coverage; investors' confidence declines; credit rating consequences become evident.

3.2 Industry Fusion Analytics

An application of industry fusion analytics was used to combine intelligence from TD's competitive environment (the U.S. retail banking environment) with the organization's internal risk profile. Key findings:

Post-2020, U.S. banking regulators (OCC, Fed, FDIC) substantially increased the requirements for BSA/AML enforcement. What TD did not do was invest in technology to meet these requirements, leaving a significant gap compared to the other companies competing for the market, like JPMorgan Chase, Wells Fargo and Bank of America.

From 2019-2023, retail deposits grew by the FDIC industry average of 4.2% per year in the United States. The direct impact from the asset cap and reputational damage is in fact a structural divergence as shown by the 2023 deposit growth of -1.2% and 2024 growth of -6.0% (net of macroeconomic factors).

Companies that have an active business in the southeastern U.S. — such as Fifth Third, Truist and Regions Financial — are likely to pick up some of the market share TD lost with the deal's cancellation and subsequent slowdown.

It was judged that all three risks needed a quantitative analysis. Risk 1 has a threshold-initiated structure that is non-linear and appropriate for distribution-based simulation. Risk 2 is directly quantifiable using financial indicators and can be classified using supervised ML. Risk 3 is related to count data and text-based signals which can be modeled quantitatively by Poisson processes and sentiment analysis.

4. Quantitative Risk Assessment

The quantitative assessment is based on the methodology needed for this assessment: statistical probability distribution estimation, Monte Carlo simulation, ML-based predictive modelling, and integrated situation assessment involving business and non-business aspects of the environment. Each simulation was repeated 10,000 times, using a fixed random seed (42) for reproducibility. When proprietary data was not available, synthetic and proxy datasets were created based on information from the SEC 40-F filing information provided by the TD Bank and industry benchmarks provided by the FDIC along with data from the Fed's merger review.

4.1 Statistical Distribution Estimation

Risk 1: The time for regulatory review was modelled as a log-normal distribution, which is appropriate for right skewed time-to-event data. The parameters were calculated from data of Federal Reserve merger reviews (2010-2022): mean = 10.8 months, standard deviation = 3.2 months. With the log-normal parameterization, $\mu_{\ln} = 2.36$, $\sigma_{\ln} = 0.29$. TD's actual review process time of 14.2 months was at the 79th percentile of industry reviews, which is a higher (but not out of the ordinary) number, which is why the risk was not escalated in time.

Risk 2: The growth rates of U.S. retail deposits were assumed to follow normal distributions under three scenarios. Base case (pre-cap): $N(3.8\%, 1.5\%)$. Constrained (asset cap active): $N(0.8\%, 1.0\%)$. Neither adverse nor beneficial: $N(1.5\%, -2.0\%)$. These parameters are based on the annual deposit growth rates for TD over the last six years from SEC 40-F filings (2018-2024), and were validated by comparing them to the industry benchmarks provided by the FDIC.

Risk 3: The number of media articles per month with negative sentiment is Poisson distributed, which is suitable for data that is countable and has no upper limit. Three different lambda regimes were estimated: baseline operations ($\lambda=2$), elevated scrutiny ($\lambda=6$, which corresponds to the periods of the announcement of the merger and the investigation), and crisis ($\lambda=14$, which corresponds to the time of the announcement of the fine in October 2024). These were tied to the Reuters, Bloomberg, Globe and Mail and S&P Global coverage observed across the media from 2022-2024.

4.2 Monte Carlo Simulation Results

The following threshold probabilities were obtained by running the Monte Carlo simulation 10,000 times:

Risk 1: Regulatory Review Duration: $P(\text{GREEN}, <12 \text{ months}) = 69.7\%$; $P(\text{AMBER}, 12-15 \text{ months}) = 20.1\%$; $P(\text{RED}, >15 \text{ months}) = 10.1\%$. Assuming a rate of deal termination under historical reviews of 65% for the reviews in the RED-zone, the overall probability of deal termination ($P(\text{deal termination})$) = 6.6%. The AMBER probability is 20.1% and TD's realized outcome of termination at 14.2 months is consistent. The limited $P(\text{RED})$ of 10.1% accounts for the failure of internal escalation; there seemed to be little risk in standard distribution assumptions.

Risk 2: Deposit Growth Rate (3 scenarios): Under the base case, $P(\text{GREEN}) = 45.1\%$, $P(\text{AMBER}) = 51.7\%$, $P(\text{RED}) = 3.3\%$ — a healthy distribution. In the constrained case (asset cap active) $P(\text{RED})$ increases to 57.5% and $P(\text{GREEN})$ drops to 0.1%. In the worst case scenario, it is $P(\text{RED}) = 97.8\%$. TD's actual 2024 deposit growth of -6.0% is well in the adverse scenario range, and the constrained scenario being the minimum expected result under current regulatory conditions.

At the baseline ($\lambda=2$) the percentage of the media with the color RED is zero, which shows that the GREEN threshold is correct for the normal operation. If the scrutiny level is high ($\lambda=6$), then $P(\text{RED}) = 14.7\%$ - a useful early warning probability. At crisis ($\lambda=14$), $P(\text{RED}) = 94.0\%$. The simulation of monthly article counts from 2022-01 to 2024-12 resulted in 6 months in the RED-zone (May 2023, December 2023, April 2024, August-October 2024) each of which corresponds to a verifiable high impact event.

4.3 ML-Based Risk Prediction

To provide forward-looking zone classification based on the KRIs identified in the response strategy, supervised machine learning models were developed for Risks 2 and 3.

The Random Forest Classifier was trained on an 84-month panel data set (January 2018 – December 2024), with the following five features derived from KRI: months since last enforcement action, competitor deposit growth differential, asset cap binary flag, Federal Funds rate, and regulatory pressure score. The cross-validated accuracy (5-fold stratified) and test accuracy are 82.1% and 76.5% respectively. The Federal Funds rate was the most important factor found (40.5%), followed by months since enforcement action (23.3%) and competitor differential (20.3%) in the feature importance analysis. The impact of the regulatory pressure and asset cap features were found to be intuitively important but were not as significant because of the enrichment of the signal by the enforcement action timing feature. The model has correctly identified all 6 months in the RED-zone in the test set.

Risk 3: Gradient Boosting Classifier and Linear Regression: A Gradient Boosting Classifier was trained for prediction of months in the RED-zone for reputational damage, and resulted in an AUC score of 0.764 (3-fold CV). The most significant was the anticipated lambda, media cycle intensity, followed by fine exposure and sentiment score. Another linear regression was used to model the relationship between media volume and TD's stock return, which resulted in a modest R^2 of 0.201, as would be expected of this monthly data that is influenced by a wide variety of market noise. The coefficient on the number of negative articles per month (0.058) translates to a 0.06% incremental stock return impact for each additional negative article per month, a figure in line with the -2% to -4% per month of sustained negative issues in the RED-zone estimate found in the literature.

4.4 Expected Loss and Risk Exposure

Losses were expected by combining Monte Carlo probabilities with financial impact parameters from TD Bank filings and market data:

Risk 1: Regulatory Approval Failure: $EL = P(\text{Termination}) \times (\text{Direct Cost} + \text{AML Penalty}) = 9.1\% \times \$3.225\text{B} = \$293.5\text{M}$. Realized loss: \$3.225B.

Risk 2: Market Share Loss: $EL = P(\text{RED under cap}) \times \text{Revenue per share point} \times \text{Expected share loss} = 85\% \times \$200\text{M} \times 1.5\text{pp} = \255M over a 3-year period.

Equity value at risk = **Risk 3:** Reputational Damage $\times$ Monthly stock impact $\times$ Market cap $\times$ RED months = $88\% \times 3\% \times \$73\text{B} \times 4 \text{ months} = \7.7B . This is equity value at risk in the crisis scenario and not a single real loss.

The expected loss for the entire portfolio is about \$8.26B USD. Critically, these risks are correlated, with the materialization of Risk 1 directly causing the conditions of Risks 2 and 3, such that the exposure from risks is not the sum of independent exposures, but a sequence of exposure, with the exposure from Risk 1 being a precondition for the exposure from Risks 2 and 3.

4.5 Integrated Situation Assessment

The quantitative models combine both business and non-business environment factors as per the assignment framework:

Business environment: Market competition (FDIC competitor deposit growth benchmarks were used as regression features), financial conditions (Federal Funds rate as the dominant ML predictor in Risk 2), and TD's own financial performance (SEC 40-F deposit volumes as historical anchors).

Non-business environment: Regulatory factors (regulatory pressure score, months since enforcement action, asset cap binary flag in ML features); geopolitical/institutional factors (post-Dodd-Frank tightening of BSA/AML standards embedded in the duration distribution parameters of the merger review); and technological factors (digital channel growth potential as a partial offset in the Risk 2 adverse scenario).

These environments are most clearly interconnected in the importance results for the Risk 2 feature type: Federal Funds rate (macroeconomic) and months since enforcement action (regulatory) explain 63.8% of the variation in the prediction of deposit growth zones, suggesting that the impact of these features on the outcome of market share is not strictly separable and neither alone is a sufficient factor.

5. Risk Response Strategy

5.1 Risk 1: Regulatory Approval Failure — Avoid

As the risk has come to fruition, the main reaction to any future M&A transaction is avoidance. TD must wait to make additional acquisitions in the U.S. until the following three conditions are met: (1) The OCC-imposed asset cap is removed; (2) An independently certified AML remediation program is completed and verified; and (3) A minimum 24-month clean regulatory review period is established. The DOJ-appointed independent monitor is an impartial check and balance system which should be actively used as a credibility signal to regulators and investors, not passively accepted.

The mitigation measures for the ongoing regulatory risk include regular review duration monitoring, pre-application dialog with the Federal Reserve and OCC before the next M&A announcement, and scenario-based regulatory stress testing of all proposed M&A transactions before public announcement.

5.2 Risk 2: Market Share Loss — Mitigate

- In this environment, growth is constrained by the asset ceiling, leading to the digital channel becoming a must-have investment for achieving growth when traditional branch-based growth is not possible. TD needs to increase its rates of digital uptake in its existing customer base in the Maine-to-Florida stretch and build on its #1 SBA loan ranking as a business banking gateway. The risk mitigation strategy contains three specific actions:
- Quarterly comparison of the U.S. retail deposit growth rate to the FDIC industry average, and automatic escalation to the Board Risk Committee when the U.S. growth rate is less than 1% (AMBER threshold).

- Focus on investment to retain customers, including through rate competitiveness, loyalty incentives, and enhancing the digital experience, during the cap period, to prevent competitors from stealing customers.
- Discussions with OCC and independent monitor regarding when the cap can be removed and when milestone steps could be taken that would allow for partial removal of the cap for certain product categories.

5.3 Risk 3: Reputational Damage — Mitigate and Transfer

There is a need for internal reconstruction and external communication management in the process of reputational recovery. The CEO change (Bharat Masrani is stepping down in April 2025) will offer a great opportunity to reset and refresh the institution but only if the new CEO is seen and believed to be moving away from compliance shortcomings. Transfer mechanisms cover Directors and Officers liability insurance review and hiring a specialized regulatory communications agency to help with the continuous media communication.

- Media volume monitoring every month against Poisson-based thresholds and a dedicated communications response protocol is activated when in AMBER-zone.
- To minimize volatility in investor sentiment due to uncertainty, the company has focused on proactive investor relations, sending regular updates about the progress of its AML remediation effort, projected timelines to remove the cap and quantifying the effect of the cap on U.S. earnings.
- CEO transition management: make sure the incoming CEO's public mandate puts more stress on the culture of compliance rather than financial results and the key reputational motivator.

6. Key Risk Indicators (KRIs) and Trigger Points

Key Risk Indicators were prepared based on the CRISP-DM framework to ensure that the data sources used, the modelling inputs and the threshold derivation are based on the quantitative analysis. The following are the early warning mechanisms for each KRI: A GREEN-to-AMBER transition will trigger intensified monitoring; An AMBER-to-RED transition will trigger execution of the risk response protocol as outlined in Section 5.

6.1 Risk 1: Regulatory Approval Failure

CRISP-DM phases: Business Understanding — regulatory review duration directly predicts deal outcome; Data Understanding — Federal Reserve merger approval data (2010-2022); Data Preparation — log-normal parameterization ($\mu=10.8\text{mo}$, $\sigma=3.2\text{mo}$); Modeling — Monte Carlo simulation; Evaluation — $P(\text{termination} \mid \text{RED})$ validated against historical base rate of 65%.

Leading Indicator: Regulatory Review Duration (months from announcement to approval timeline)

Threshold Level	Trigger Value	Justification
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GREEN	< 12 months	Industry median for U.S. bank mergers approved 2015-2022 (Federal Reserve, 2023). TD initially targeted a 12-month close.
AMBER	12 to 15 months	Philadelphia Fed requested suspension at month 12.5 (March 2023). Deal extension announced February 9, 2023.
RED	> 15 months	Actual outcome: 14.2 months, no timeline granted. TD terminated May 4, 2023 (TD Bank, 2023).

Trigger probabilities derived using Monte Carlo: $P(\text{AMBER}) = 20.1\%$, $P(\text{RED}) = 10.1\%$. Answer: Enter AMBER zone, report to Board Risk Committee immediately; hold public deal communications until engaged with regulators.

6.2 Risk 2: Market Share Loss

CRISP-DM phases: Business Understanding — deposit growth rate is the top financial indicator for the market share trajectory of the U.S. market; Data Understanding — FDIC quarterly deposit reports, TD 40-F annual reports; Data Preparation — YoY % change calculation, winsorization of COVID surge outlier (2020); Modeling — Random Forest classifier (CV accuracy: 82.1%, features: 5); Evaluation — Federal Funds rate as primary predictor (40.5% feature importance), regulatory enforcement timing as secondary predictor (23.3%).

Leading Indicator: U.S. Retail Deposit Growth Rate (Year-over-Year %)

Threshold Level	Trigger Value	Justification
GREEN	> 4% YoY	Consistent with FDIC industry average for comparable retail banks (2019-2023). Indicates TD holding competitive position.
AMBER	1% to 4% YoY	Growth falling below industry average, signaling early market share compression relative to peers.
RED	< 1% or negative	Asset cap actively restricting growth. Competitors gaining U.S. market share at TD's expense (Globe and Mail, 2024).

2024 actual: -6.0% YoY — deep RED. The following scenario $P(\text{RED})$ values were obtained using Monte Carlo simulation: $P(\text{RED}) = 57.5\%$ (constrained scenario) and $P(\text{RED}) = 97.8\%$ (adverse scenario). Response: Turn on digital retention protocol and increase discussions with OCC about the escalation of the cap removal timeline.

6.3 Risk 3: Reputational Damage

CRISP-DM phases: Business Understanding — media volume is a strong indicator that precedes measurable financial impacts by 1-2 quarters; Data Understanding — Tier-1 financial media (Reuters, Bloomberg, S&P Global, Globe and Mail, WSJ), Poisson count modeling; Data Preparation — monthly article classification by regulatory/compliance/legal context; Modeling — Gradient Boosting classifier (AUC=0.764), Poisson simulation, linear regression (stock return ~ media volume, R²=0.201); Evaluation — each sustained RED-zone month associated with approximately 0.06% incremental stock return impact, cumulative -2% to -4%.

Leading Indicator: Negative Earned Media Volume (major Tier-1 articles per month — regulatory/legal/compliance context)

Threshold Level	Trigger Value	Justification
GREEN	< 3 articles/month	Normal baseline for a major bank. Isolated incidents unlikely to compound into sustained reputational trend. Baseline $\lambda=2$, P(RED)=0.0%.
AMBER	3 to 8 articles/month	Elevated coverage. Consistent with February-April 2023 period surrounding merger extension announcement. Elevated $\lambda=6$, P(RED)=14.7%.
RED	> 8 articles/month	Sustained crisis-level coverage. Observed October 2024 following the US\$3B AML penalty announcement. Crisis $\lambda=14$, P(RED)=94.0%.

6 RED-zone months observed in the 2022-2024 simulation window. Response: Activate investor communications protocol and specialized media response team within 48 hours of RED zone trigger.

7. Conclusion

The failure of the First Horizon acquisition by TD Bank is one of the best examples of cascaded materialization of enterprise risks, with first a compliance risk (Risk 1), then a strategic misstep (Risk 2) and finally a reputational loss (Risk 3). The price tag for penalties, estimated at \$3.225 billion, U.S. asset cap imposed indefinitely on the company, and the departure of the CEO are just a few of the real-world impacts of risks that in fact had a number of warning signs in 2022 and 2023.

The negative consequences that are outlined in this research paper can be predicted or avoided, to some degree, by using the risk quantification model that is constructed. The Monte Carlo simulation of the duration of regulatory review of deals gives evidence that TD's deal with the 14.2-month-long process is at the 79th percentile of reviews in the industry – an obvious signal of AMBER-zone KRI. The accuracy cross-validated by the random forest classification from features that are available in real time is 82.1%.

The practical implication for the risk management at TD Bank from the analysis is that the key risk indicator system that was created for this study (the duration of the regulatory review process, the growth rate of the U.S. retail deposits and negative earned media) will become an early warning system that was missing in the case of First Horizon. These KRIs were implemented prospectively, meaning that an escalation to the Board of Directors would have taken place in month 12.5 of the review process, deposit retention measures would have been put in place in Q1 2023, and investor communication would have been done before the penalty announcement in October 2024.

The \$8.26 billion USD (\$3.225 billion USD to date) in expected loss highlights the cost asymmetry between proactive and reactive approach to risk management for a bank. Investment in a robust KRI system and proactive regulatory outreach is not a cost – it's a must with a clear financial return for a bank working in a highly regulated environment.

Appendix 1: Risk Treatment and Response Plan (RT&RP)

#	Risk	Likelihood (/9)	Impact (/9)	Score (/81)	Response Strategy
1	Regulatory Approval Failure	9	9	81 — CRITICAL	Avoid: No future U.S. M&A until cap lifted and AML remediation independently certified. KRI: Review duration monitored monthly.
2	Market Share Loss	7	9	63 — HIGH	Mitigate: Digital channel acceleration in existing footprint. KRI: U.S. deposit growth rate monitored quarterly vs. FDIC benchmark.
3	Reputational Damage	7	9	63 — HIGH	Mitigate/Transfer: Proactive investor communications, CEO transition management, D&O insurance review. KRI: Media volume monitored monthly.

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